IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

Item No.235 - CP(CAA)/59(AHM)2022
in
CA(CAA)/22(AHM)2022
Item No.236- IA 78 of 2022

Proceedings under Section 230-232 Co.Act,2013

IN THE MATTER OF:

SMP Constructions Pvt Ltd **.....Applicant**
SMP Infrastructure Pvt Ltd

.....Respondent

Order delivered on 19/12/2022

Coram:

Dr. Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Ravi Raj Singh, Adv. for Mr. Dhinal Shah, Adv.
For the Income Tax : Ms. Pankti Shah, Adv.
For the RD :

ORDER

IA 78 of 2022 & CP(CAA) 59 of 2022

Application is filed by the petitioner companies seeking condonation of two days delay in filing second motion petition. Application is allowed and delay of two days' is condoned. In view of the same, CP(CAA) 59 of 2022 is admitted.

The Petitioner shall advertise Notice of hearing of this petition in "Times of India" Ahmedabad Edition and Gujarati translation thereof in "Gujarat Samachar" Gujarat Edition in vernacular language not less than ten days before fixed date of hearing, calling for objections, if any, on or before the date of hearing.

The Petitioner shall issue notice(s) to following, informing the date of hearing:

1. **Regional Director and the Registrar of Companies** both situated at *RoC* Bhavan, Opp. Rupal Park Society, Behind Ankur Bus Stop, Naranapura, Ahmedabad (380013)**.**
2. **The Official Liquidator** situated at 3rd Floor, Corporate Bhawan, B/H Zydus Hospital, Thaltej, Ahmedabad-380059 Gujarat.

3. **The Income Tax Department** at respective ward officers with details of PAN of all Petitioners Companies and also Office of Principal Chief Commissioner Income Tax, at their present address.

List for hearing on 14.02.2023.

-Sd- -Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)